

REQUEST TO REMOVE NAME FROM ONLINE PUBLIC INDEX (COURTVIEW)
UNDER ADMINISTRATIVE RULE 40(b) or (c)

Under Alaska law, court case records are public unless an Alaska Statute or court rule requires that they be sealed or made confidential. All public cases also appear in the public index (CourtView). If having your name on public CourtView is likely to result in substantial physical harm to you or members of your household, or if the case involves sensitive and highly personal matters that could expose a person to harassment, injury, ridicule, or personal embarrassment, a judge may order that your name be removed. If your request is granted, the case itself will remain listed on public CourtView, but the name(s) of the party or parties will say "Not Published."

Filing Instructions: File this request with the Clerk's Office at your [local trial court](#).

Name: _____
Address: _____
Email: _____ Daytime Phone: _____
By providing an email address, you agree that the court and other parties can send court documents to you at this email address.
Case Name: _____ Case No.: _____
Party Names: _____

I am a party in this case. I ask the judge to change my name on the online public index (CourtView) to "Not Published," because:

☐ The issues in the case involve matters of a sensitive and highly personal nature. Publication of my name could expose a person to harassment, injury, ridicule, or personal embarrassment. Protection of my name outweighs the public's interest in disclosure and any prejudice to the opposing party. Administrative Rule 40(b).

☐ Publication of my name is likely to result in substantial physical harm to me or members of my household. Protection of my name outweighs the public's interest in disclosure. Administrative Rule 40(c).

[NOTE: under subsection (c) of the rule, the name removal will last for five years. After five years, you must file a new request if you want your name to stay as "Not Published."]

I believe that the statements above are true, because:

Verification

I state on oath or affirm that I read this document and believe all statements in it are true.

Date Your Signature
Subscribed and sworn to or affirmed before me at _____, Alaska on _____

(SEAL) _____
Court clerk, notary public, or other person
authorized to administer oaths.
My commission expires _____

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You must give a copy of this form (and everything attached to it) to every party in the case. This is called "service."

Use TrueFiling to serve the other party if:

- Both you and the other party are using TrueFiling.
- You are using TrueFiling and the other party gave their email address to the court.

Use the Certificate of Service below if:

- The other party is not using TrueFiling and did not give their email address to the court.
- TrueFiling is not available - check TrueFiling availability at <https://ak-courts.info/tfcourts>
- You are exempt from using TrueFiling.

Certificate of Service

I certify on _____ at _____ [date/time] I gave a copy of this document **and** any attachments by ☐ mail. ☐ hand-delivery. ☐ TrueFiling. ☐ email. [You can only use email if the other party provided an email address to the court].

I served these people: _____

Signature: _____

ORDER

The requested removal from the online public index is:

- ☐ DENIED.
- ☐ GRANTED under **Administrative Rule 40(b)**. The particular basis in this case for not disclosing the name, as distinguished from the interest in non-disclosure by parties in similar case types, is:

The clerk shall substitute "Not Published" for the party's name on the online public index.

- ☐ GRANTED under **Administrative Rule 40(c)**. The particular basis in this case for not disclosing the name, as distinguished from the interest in non-disclosure by parties in similar case types, is:

The clerk shall substitute "Not Published" for the party's name on the online public index for five years. After five years, the party's name will appear on the online public index unless the presiding judge orders the name protected for a longer time upon another request by the party.

- ☐ _____

Presiding Judge Date

Type or Print Name

I certify that on _____, a copy of this order was distributed to:

JA/Clerk:

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